

22STCV04376 22STCV04376

County: los-angeles

Division: Civil Law and Motion

Department: 415

Hearing date: 2026-09-08

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Case Number: 22STCV04376 Hearing Date: September 8, 2026 Dept: 415

Tentative Ruling

Judge Rolf M. Treu, Department 415

HEARING

DATE: September 8, 2026 TRIAL

DATE: Trial complete

CASE: Pittleman, et al. v. Spina Organics,
LLC, et al.

CASE

NO.: 22STCV04376

MOTION TO

AMEND JUDGMENT

MOVING PARTY/PARTIES: Plaintiffs and Judgment Creditors Ellen
Pittleman and Hybrid Entertainment, Inc.

RESPONDING PARTY/PARTIES: None

PROOF OF SERVICE:

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Correct Address: Yes.

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Served electronically on March 20,
2026 for a hearing date of September 8, 2026.

CASE HISTORY:

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February 3, 2022: Complaint filed.

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November 19, 2024: Court trial
commenced.

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March 3, 2025: Court trial
completed.

.
May 29, 2025: Judgment entered in
favor of Plaintiffs in the amount of \$251,235.21.

STATEMENT OF MATERIAL FACTS AND/OR
PROCEEDINGS:

Plaintiffs and Judgment Creditors
Ellen Pittleman ("Pittleman") and Hybrid Entertainment, Inc. (collectively, "Plaintiffs")
prevailed at trial against Defendants and Judgment Debtors Spina Organics, LLC
and Mauro Spina ("Spina," collectively, "Defendant"). Plaintiffs filed and served a supplemental
declaration in support of the motion on August 18, 2026 by email. That is not sufficient notice. (Code Civ. Proc., § 1005,
subd. (b).) Accordingly, the Court disregards the
supplemental declaration. Plaintiffs
seek to add Mauro Inc. as an additional judgment debtor because Plaintiffs
contend Mauro Inc. is the alter ego of Spina.
Defendants have not opposed the motion.

TENTATIVE RULING:

Plaintiffs'
motion to amend judgment is DENIED.

Moving

party to give notice.

DISCUSSION:

Motion to amend judgment

In their notice of motion,

Plaintiffs cite *Gopal v. Kaiser Foundation Health Plan, Inc.* (2016) 248

Cal.App.4th 425 and Code of Civil Procedure section 187 as authority for this

motion. The Court cannot grant relief

based on authority other than that cited in the notice of motion. (See Code Civ. Proc., § 1010; Cal. Rules of Court, rule 3.1110, subd. (a); *People v. American Sur. Ins. Co.* (1999)

75 Cal.App.4th 719, 726.) In *Gopal v.*

Kaiser Foundation Health Plan, Inc. (2016) 248 Cal.App.4th 425, the Court

explained that if joint enterprise or alter ego liability applies when persons

use a corporate form to perpetrate fraud, circumvent a statute, or accomplish

some other wrongful or inequitable purpose. Under these circumstances, the Court may then

disregard the corporate entity and treat the corporation's acts as if they were

done by the persons controlling the corporation. (*Gopal v. Kaiser Foundation Health Plan,*

Inc. (2016) 248 Cal.App.4th 425, 431.) *Gopal v. Kaiser Foundation Health Plan,*

Inc. (2016) 248 Cal.App.4th 425 is not authority for post-judgment

amendment.

Under Code of Civil Procedure

section 187, the Court may amend a judgment to add an additional judgment

debtor who is the alter ego of the original judgment debtor. (See *Angel Lynn Realty, Inc. v. George*

(2025) 114 Cal.App.5th 655, 659-660.) However,

as Plaintiffs acknowledge, Spina is a party to this litigation. As such, what Plaintiffs seek is reverse veil

piercing to hold Mauro Inc. liable for the judgment against Spina. The Court may use reverse veil piercing to

add a nonparty limited liability company to satisfy the debts of an individual

with the assets of the limited liability company of which the individual is an

insider. (*Curci Investments, LLC v.*

Baldwin (2017) 14 Cal.App.5th 214, 222.) However, California law does not permit

reverse piercing of the corporate veil. (*Postal Instant Press v. Kaswa Corp.*

(2008) 162 Cal.App.4th 1510, 1520-1521.)

As such, Plaintiffs must proceed via normal judgment collection

procedures.

Accordingly,

Plaintiffs' motion to amend judgment is DENIED.

Moving
party to give notice.

IT
IS SO ORDERED.

Dated: September 8, 2026 _____

Rolf
M. Treu

Judge
of the Superior Court

Any party may submit on the tentative ruling by
contacting the courtroom via email at SMCDept415@lacourt.ca.gov by no later
than 4:00 p.m. the day before the hearing. All interested parties
must be copied on the email. It should be noted that if you submit
on a tentative ruling the court will still conduct a hearing if any party
appears. By submitting on the tentative you have, in essence, waived your right
to be present at the hearing, and you should be aware that the court may not
adopt the tentative, and may issue an order which modifies the tentative ruling
in whole or in part.